

Who was actually responsible for the Toby Young OfS debacle?

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Who do you think was responsible for the monumental failure of judgement that ended with Toby Young being appointed to a regulatory body for HE in the UK, the so-called but misnamed "Office for Students"? You'd think that it would be impossible that anybody actually ran a recruitment panel that would come to such a conclusion, but the Department for Education got back to me today on my Freedom of Information request to provide answers to my queries.

In terms of formal process, I was told that "two recruitment campaigns were run in parallel in the second half of 2017 to recruit up to six members to the Office for Students (OfS). One campaign focused on recruiting a member with experience of promoting or representing the interests of students (the "student experience" role). The other was for up to five other ordinary members (sometimes referred to as the non-executive director campaign).

Both processes included an open advertisement and applications process, the adverts are attached. The applicant pack can be found at the following link, <https://publicappointments.cabinetoffice.gov.uk/wp-content/uploads/2017/08/Applicant-Pack-OfS-Non-Executive-Directors.pdf>.

The processes also involved longlisting, shortlisting and interviews led by an assessment panel. The assessment panel then provided a report to Ministers including the appointable candidates. Ministers subsequently chose to appoint five of them to the vacancies for ordinary members. Ministers chose not to appoint anyone from the student experience campaign, and subsequently made an interim appointment of one of the successful candidates appointed to the OfS Student Panel onto the OfS Board.

In terms of who was actually on the interview panels:

The interview panel for the “student experience” Board member was comprised of: Sir Michael Barber (Chair of the OfS); Polly Payne and Ruth Hannant (job share partners and senior civil servants); Judy Clements (then of the Office of the independent Adjudicator and the independent panel member).

The assessment panel for the five other ordinary members was comprised of: Sir Michael Barber (Chair), OfS Chair; Stephen Jones, a senior civil servant and Gordon McKenzie, GuildHE, the independent panel member from the HE sector.

So, it's clear from this provided by the DfE that:

1. Despite his later back-tracking about how it was “right” for Young to resign, Michael Barber chaired the panel that appointed him (and the other members of the OfS board). This is not unexpected but it casts serious doubt on his judgement (beyond the serious doubt on his judgement cast by chairing the OfS). Previously of Pearson, of course.
2. Gordon McKenzie from GuildHE was on the panel. GuildHE is the mission group for the newest universities. Previously, he was Deputy Director, HE Strategy and Policy at the Department for Business, Innovation and Skills.

3. Stephen Jones, the senior civil servant, lists himself as “Deputy Director, Higher Education Landscape Reform” on LinkedIn.

So, the panel was three white men (surely part of the DfE’s commitment “to creating inclusive and diverse public boards”), which is not ideal.

Further, the criteria against which the panel were supposed to evaluate board members included:

- “The ability to contribute, influence and inspire confidence with a wide range of stakeholders both in formal environments (such as one to one meetings and Executives)...”
- “Candidates should be able to demonstrate good judgement and high levels of integrity.”

I cannot for the life of me see how the interview panel of Barber, McKenzie, and Jones found Young to be fit by these criteria. Perhaps they just asked him “are you trusted by a wide range of stakeholders?” and “do you demonstrate good judgement and high levels of integrity?” and he answered “yes” or something. Indeed, it looks far more likely that they simply assessed by the earlier criterion “Genuine interest in contributing to the delivery of the Government’s Priorities for higher education and effective running of OfS”. Or perhaps there was top-down political pressure on the panel, here... And, of course, the ultimate *appointment* was confirmed by politicians.